

LEGISLATIVE BILL 614

Approved by the Governor May 21, 2025

Introduced by Andersen, 49.

A BILL FOR AN ACT relating to cities and villages; to amend sections 16-901 and 17-1001, Reissue Revised Statutes of Nebraska; to restate exemptions for farm buildings within the extraterritorial zoning jurisdiction; and to repeal the original sections.

Be it enacted by the people of the State of Nebraska,

Section 1. Section 16-901, Reissue Revised Statutes of Nebraska, is amended to read:

16-901 (1) Except as provided in section 13-327 and subsection (2) of this section, the extraterritorial zoning jurisdiction of a city of the first class shall consist of the unincorporated area two miles beyond and adjacent to its corporate boundaries.

(2) For purposes of sections 70-1001 to 70-1020, the extraterritorial zoning jurisdiction of a city of the first class shall consist of the unincorporated area one mile beyond and adjacent to its corporate boundaries.

(3) Any city of the first class may apply by ordinance any existing or future zoning regulations, property use regulations, building ordinances, electrical ordinances, plumbing ordinances, and ordinances authorized by section 16-240 within its extraterritorial zoning jurisdiction with the same force and effect as if such area were within the corporate limits of the city, except that no such ordinance shall be extended or applied so as to prohibit, prevent, or interfere with the conduct of existing farming, livestock operations, businesses, or industry. The fact that the extraterritorial zoning jurisdiction is located in a different county or counties than some or all portions of the municipality shall not be construed as affecting the powers of the city to apply such ordinances.

(4)(a) Any city of the first class may exempt from application of its zoning regulations, property use regulations, building ordinances, electrical ordinances, plumbing ordinances, and ordinances authorized by section 16-240 within its extraterritorial zoning jurisdiction, by action of the board of adjustment pursuant to sections 19-907 to 19-915 and any applicable ordinance, certain farm buildings when such structures are consistent with the comprehensive development plan, including anticipated long-range future growth based upon documented population and economic projections, as required by sections 19-907 to 19-915.

(b) For purposes of this subsection, farm building means a building utilized for agricultural purposes as defined in section 77-1359 on a farmstead of twenty acres or more which produces one thousand dollars or more of farm products each year.

~~(5)(a) (4)(a)~~ A city of the first class shall provide written notice to the county board of the county in which the city's extraterritorial zoning jurisdiction is located when proposing to adopt or amend a zoning ordinance which affects the city's extraterritorial zoning jurisdiction within such county. The written notice of the proposed change to the zoning ordinance shall be sent to the county board or its designee at least thirty days prior to the final decision by the city. The county board may submit comments or recommendations regarding the change in the zoning ordinance at the public hearings on the proposed change or directly to the city within thirty days after receiving such notice. The city may make its final decision (i) upon the expiration of the thirty days following the notice or (ii) when the county board submits comments or recommendations, if any, to the city prior to the expiration of the thirty days following the notice.

(b) Subdivision ~~(5)(a)~~ ~~(4)(a)~~ of this section does not apply to a city of the first class (i) located in a county with a population in excess of one hundred thousand inhabitants as determined by the most recent federal decennial census or the most recent revised certified count by the United States Bureau of the Census or (ii) if the city and the county have a joint planning commission or joint planning department.

Sec. 2. Section 17-1001, Reissue Revised Statutes of Nebraska, is amended to read:

17-1001 (1) Except as provided in section 13-327 and subsection (2) of this section, the extraterritorial zoning jurisdiction of a city of the second class or village shall consist of the unincorporated area one mile beyond and adjacent to its corporate boundaries.

(2) For purposes of sections 70-1001 to 70-1020, the extraterritorial zoning jurisdiction of a city of the second class or village shall consist of the unincorporated area one-half mile beyond and adjacent to its corporate boundaries.

(3) Any city of the second class or village may apply by ordinance any existing or future zoning regulations, property use regulations, building ordinances, electrical ordinances, and plumbing ordinances within its extraterritorial zoning jurisdiction, with the same force and effect as if such area was within its corporate limits. No such ordinance shall be extended or

applied so as to prohibit, prevent, or interfere with the conduct of existing farming, livestock operations, businesses, or industry. The fact that the extraterritorial zoning jurisdiction or part thereof is located in a different county or counties than some or all portions of the municipality shall not be construed as affecting the powers of the city or village to apply such ordinances.

(4)(a) Any city of the second class or village may exempt from application of its zoning regulations, property use regulations, building ordinances, electrical ordinances, and plumbing ordinances within its extraterritorial zoning jurisdiction, by action of the board of adjustment pursuant to sections 19-907 to 19-915 and any applicable ordinance, certain farm buildings when such structures are consistent with the comprehensive development plan, including anticipated long-range future growth based upon documented population and economic projections, as required by sections 19-907 to 19-915.

(b) For purposes of this subsection, farm building means a building utilized for agricultural purposes as defined in section 77-1359 on a farmstead of twenty acres or more which produces one thousand dollars or more of farm products each year.

(5)(a) ~~(4)(a)~~ A city of the second class or village shall provide written notice to the county board of the county in which the extraterritorial zoning jurisdiction of the city or village is located when proposing to adopt or amend a zoning ordinance which affects the extraterritorial zoning jurisdiction of the city or village within such county. The written notice of the proposed change to the zoning ordinance shall be sent to the county board or its designee at least thirty days prior to the final decision by the city or village. The county board may submit comments or recommendations regarding the change in the zoning ordinance at the public hearings on the proposed change or directly to the city or village within thirty days after receiving such notice. The city or village may make its final decision (i) upon the expiration of the thirty days following the notice or (ii) when the county board submits comments or recommendations, if any, to the city or village prior to the expiration of the thirty days following the notice.

(b) Subdivision (5)(a) ~~(4)(a)~~ of this section does not apply to a city of the second class or a village (i) located in a county with a population in excess of one hundred thousand inhabitants as determined by the most recent federal decennial census or the most recent revised certified count by the United States Bureau of the Census or (ii) if the city or village and the county have a joint planning commission or joint planning department.

Sec. 3. Original sections 16-901 and 17-1001, Reissue Revised Statutes of Nebraska, are repealed.